



POLICE DEPARTMENT

February 26, 2026

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202408694 (Incident Date: September 1, 2024) regarding Sergeant Rafed Khan,
Tax No. 956796 (PODS Case No. C-036346)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Rafed Khan and has determined that the proposed penalty of a Schedule "B" Command Discipline is not warranted.

In this matter, Sergeant Khan was assigned as the supervisor of two officers who had responded to a location requiring the completion of a domestic incident report for a female complainant. As the officers were conducting their investigation and completing paperwork, a third party began interfering with the officers, causing them to direct their attention away from the domestic situation. As a result of the third party's actions, the officers issued him a summons for Disorderly Conduct. Sergeant Khan was present and supervised the issuance of said summons.

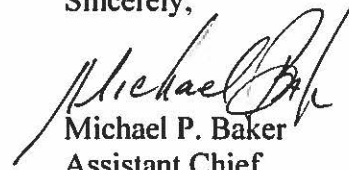
As a result of a complaint made by the third party, CCRB substantiated an allegation against Sergeant Khan for authorizing an unlawful disorderly conduct summons to be issued. CCRB further recommended that Sergeant Khan receive a Schedule "B" Command discipline for the alleged misconduct. The Police Commissioner disagrees. Although disorderly conduct may have been the wrong violation to charge on the summons, it would have been reasonable for the officers to charge Obstruction of Governmental Administration – a class A misdemeanor under NYS Penal Law §195.05. CCRB in their investigative report at page 3 properly notes that the third party interrupted the officers from assisting another individual in completing a domestic report, which delayed the investigation into that separate incident. Furthermore, they agree that body worn camera footage also documented that the individuals were bothered by the third party's continued presence at the location. For these reasons, and in the interest of justice, the Police Commissioner will impose No Disciplinary Action.

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Separate and apart, the Police Commissioner recognizes that the Sergeant would benefit from additional training directs that he receives formalized training in NYS Penal Law §195.05 (Obstruction of Governmental Administration) and NYS Penal Law §240.20 (Disorderly Conduct).

Sincerely,

A handwritten signature in black ink, appearing to read "Michael P. Baker". The signature is fluid and cursive, with the first name "Michael" being the most prominent part.

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office